Notification Waiver Determination

Publicis – 160over90

Acquisition	Publicis Media Australia Pty Ltd, an indirect wholly owned subsidiary of Publicis Groupe S.A. (**Publicis**), applied for a notification waiver in respect of its proposed acquisition of certain assets of International Management Group of America Pty Ltd (**160over90**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	29 April 2026

Parties to the Acquisition	Publicis is a multinational marketing communications holding corporation, listed on Euronext Paris. It is a global leader in communication, present in over 100 countries and employing around 114,000 professionals. Its expertise spans communication, media, data and technology. In Australia, Publicis operates through its wholly owned subsidiaries, including Publicis Communications Australia (advertising, creative, public relations and production services), Publicis Media Australia (media planning, strategy and buying services), and Publicis Sapient Australia (digital business transformation), among others. 160over90 is a marketing agency which forms part of the WME Group. 160over90 is a global marketing and branding agency specialising in cultural, sports, and entertainment marketing, with over 670 employees across the US, UK, EMEA and APAC. In Australia, 160over90 has a small presence, providing marketing services, including digital and social media management, event activation, partnership procurement and activation, public relations and creative services. Publicis and 160over90 are both active in the supply of marketing and communication services. 160over90 does not supply any media buying services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. there is a small horizontal overlap between Publicis and 160over90 in the supply of marketing and communication services in Australia and the increase in share of supply arising from the Acquisition would be small b. there are alternative providers of marketing and communication services, including for the cultural, sports, and entertainment sectors in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act